



**CHAPTER cxxii.**

An Act to confirm a Provisional Order under the Private A.D. 1911.  
Legislation Procedure (Scotland) Act 1899 relating to  
Dumbarton Churchyard. [18th August 1911.]

**W**HEREAS His Majesty's Secretary for Scotland has made  
the Provisional Order set forth in the schedule hereunto  
annexed under the provisions of the Private Legislation Procedure 62 & 63 Vict.  
(Scotland) Act 1899 and it is requisite that the said Order should c. 47.  
be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty  
by and with the advice and consent of the Lords Spiritual and  
Temporal and Commons in this present Parliament assembled  
and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto Confirmation  
annexed shall be and the same is hereby confirmed. of Order in  
schedule.

2. This Act may be cited as the Dumbarton Churchyard Short title.  
Order Confirmation Act 1911.



A.D. 1911.

S C H E D U L E.

DUMBARTON CHURCHYARD.

*Provisional Order to empower the Heritors of the Parish of  
Dumbarton to sell a portion of the Churchyard of  
the Parish and for other purposes.*

WHEREAS the present parish church of Dumbarton was erected in or about the year 1811 and certain ground adjoining thereto extending to upwards of five thousand five hundred square yards or thereby hereinafter called "the churchyard" was prior to and after said date used for the interment of the parishioners of the parish of Dumbarton:

And whereas the churchyard is vested in the Heritors of the parish of Dumbarton hereinafter called "the Heritors":

And whereas on the petition of certain residents in Dumbarton craving that the churchyard be closed under and in terms of the Burial Grounds (Scotland) Act 1855 as being dangerous to health and offensive or contrary to decency the sheriff of Dumbarton and Bute on 28th May 1855 pronounced an interlocutor closing the churchyard which interlocutor was forwarded to one of the Principal Secretaries of State and thereafter an Order of the Queen in Council dated 22nd October 1856 was pronounced inter alia to the effect "that from and after 1st January 1857 burials in the "burial ground of the said burgh and parish shall be wholly "discontinued":

And whereas a new cemetery was acquired by the town council of Dumbarton in or about the year 1854:

And whereas since 1st January 1857 no interments have taken place in the churchyard:

And whereas the business of shipbuilding and cognate industries form the main industries of the burgh of Dumbarton and the majority of the inhabitants are dependent on the said industries:

And whereas an important shipbuilding work within the said burgh is carried on by Messrs, Archd. M'Millan and Son Limited



hereinafter called "the company" whose premises are bounded partly on the east west and north by the churchyard: A.D. 1911.

And whereas in consequence of the increased size of vessels and for other reasons the shipbuilding yard of the company has of recent years proved inadequate for their requirements and the only direction in which their premises can be extended is by the inclusion of a portion of the churchyard:

And whereas in the interests of the community as well as of the company it is of the greatest importance that the company should not be compelled to remove their shipbuilding yard outwith the burgh of Dumbarton:

And whereas negotiations have been entered upon between the Heritors and the company with a view to the sale by the Heritors to the company of a portion of the churchyard adjoining the company's shipbuilding yard extending to nine hundred and fifty-one square yards or thereby as shown on the plan hereinafter in this Order referred to and a provisional agreement has been entered into to that effect between the Heritors and the company dated 28th and 29th September 1910:

And whereas the company in the event of their acquiring the said portion of the churchyard are willing and prepared to remove as hereinafter provided the remains of any persons interred in the said portion of the churchyard and otherwise to prevent any desecration of the graves therein:

And whereas it is expedient in the public interest that the said proposed sale should be carried into effect:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

1. This Order may be cited for all purposes as the Dumbarton Churchyard Order 1911. Short title.

2. In this Order unless the contrary appears—  
The expression "the Heritors" means the Heritors of the parish of Dumbarton; Interpretation.



[Ch. cxxii.] *Dumbarton Churchyard Order* [1 & 2 GEO. 5.]  
*Confirmation Act, 1911.*

A.D. 1911.

The expression "the churchyard" means the disused burial ground adjoining the parish church of Dumbarton at present vested in the Heritors;

The expression "the company" means Messrs. Archd. M'Millan and Son Limited shipbuilders Dumbarton;

The expression "the burgh" means the burgh of Dumbarton;

The expression "the committee" means the committee of management of the Heritors of the parish of Dumbarton seven in number.

Power to  
sell.

3. The Heritors are hereby empowered to sell to the company and the company to purchase from the Heritors that portion of the churchyard extending to nine hundred and fifty-one square yards and bounded as follows (that is to say) On the south wholly and on the east and west partly by the said shipbuilding yard and on the north by other parts of the churchyard and shown on the plan signed in duplicate by Philip Francis Wood Senior Counsel to the Secretary for Scotland under the Private Legislation Procedure (Scotland) Act 1899 whereof one copy has been deposited in the Scottish Office Whitehall London and the other copy shall within one month after the commencement of this Order be deposited in the office of the town clerk of the burgh:

And the Heritors may grant all dispositions conveyances or other deeds necessary and appropriate to vest the company in the said portion of the churchyard and such dispositions conveyances or other deeds may be executed on behalf of the Heritors by any two of the committee and their clerk. In the event of any dispute or disputes between the parties as to the dispositions conveyances or other deeds such dispute or disputes shall be adjusted by or at the sight of the arbiter aftermentioned.

Price and  
payment  
thereof.

4. The purchase price of the said portion of the churchyard shall be the sum of nine hundred and fifty-one pounds and the company shall be bound on the passing of the Act confirming this Order to pay the said sum to the Heritors in exchange for a conveyance by the Heritors in favour of the company of the said portion of the churchyard.

Vesting of  
subjects in  
company.

5. Subject to the provisions of this Order the said portion of the churchyard shall cease to be vested in the Heritors and become the property of the company.



6.—(1) Prior to the company entering upon or interfering with or in any way utilising the said portion of the churchyard they shall remove or cause to be removed the remains of all deceased persons interred therein. A.D. 1911.  
Removal and  
re-interment  
of remains.

(2) Before proceeding to remove any such remains the company shall publish a notice for three successive issues in two local newspapers circulating in the burgh to the effect that it is intended to remove such remains and such notice shall have embodied in it the substance of subsections (3) (4) (5) (6) and (7) of this section.

(3) Any time within two months after the first publication of such notice any person who is an heir executor administrator or relative of any deceased person whose remains are interred in the said portion of the churchyard may give notice in writing to the company of his intention to undertake the removal of such remains and thereupon he shall be at liberty to cause such remains to be removed to and re-interred in any burial ground or cemetery in which burials may legally take place.

(4) If any person giving such notice as aforesaid shall fail to satisfy the company that he is such heir executor administrator or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the sheriff of Clackmannan Stirling and Dumbarton or any of his substitutes who shall have power to make an order specifying who shall remove the remains.

(5) The expense of such removal and re-interment (not exceeding in respect of remains removed from any one grave the sum of ten pounds) shall be defrayed by the company such sum to be apportioned if necessary equally according to the number of remains in the grave.

(6) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the company in respect of the remains in any grave or if after such notice has been given the persons giving the same shall fail to comply with the provisions of this section the company may remove the remains of the deceased person and cause them to be interred in such other burial ground or cemetery in which burials may legally take place as the company think suitable for the purpose.

(7) All monuments and tombstones relating to the remains of any deceased person removed under this section shall at the



[Ch. cxxii.] *Dumbarton Churchyard Order* [1 & 2 GEO. 5.]  
*Confirmation Act, 1911.*

A.D. 1911. expense of the company be removed and re-erected at the place of re-interment of such remains or at such place within the burgh as the Heritors may direct on the application (if any) of such heir executor administrator or relative as aforesaid or failing such application on the application of the company.

(8) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the burgh.

(9) In the event of any difference arising between the company and the Heritors with reference to the carrying into effect of the obligations contained in this section or the meaning and effect thereof the same shall be referred to the Dean of the Faculty of Advocates for the time being as sole arbiter whose decision shall be final and binding on the parties.

Application  
of purchase  
price.

7. The purchase price of nine hundred and fifty-one pounds sterling payable by the company to the Heritors may be applied to purposes of a capital nature for which assessments payable by Heritors may be levied and pending such application shall be held by the Heritors in trust and if they so resolve be invested by them in securities in which trustees may legally invest trust funds according to the law of Scotland for the time being and the income thereof applied to any purposes for which assessments as aforesaid may be levied.

Costs of  
Order.

8. All costs charges and expenses of and incident to the preparing for obtaining and confirming this Order or otherwise in relation thereto including the expense of all necessary dispositions conveyances or other deeds as the same may be taxed by the auditor of the court of session shall be paid by the company.

---

Printed by EYRE and SPOTTISWOODE, Ltd.,

FOR

ROWLAND BAILEY, Esq., C.B., M.V.O., the King's Printer of Acts of Parliament.

---

And to be purchased, either directly or through any Bookseller, from  
WYMAN AND SONS, LTD., FETTER LANE, E.C.; or  
OLIVER AND BOYD, TWEEDDALE COURT, EDINBURGH; or  
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN.





## CHAPTER cxxiii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Chambers Institution Peebles. [18th August 1911.] A.D. 1911.

**W**HEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Chambers Institution Peebles Order Confirmation Act 1911. Short title.



A.D. 1911.

SCHEDULE.

CHAMBERS INSTITUTION PEEBLES.

*Provisional Order to transfer the administration and management of the Chambers Institution Peebles and endowments thereof to the Provost Magistrates and Councillors of the Royal burgh of Peebles and to the committee to be appointed on the adoption in the said burgh of the Public Libraries Consolidation (Scotland) Act 1887 as modified by this Order and to provide for the administration and management of the said Institution to continue the privileges of the said Institution to persons resident in the county of Peebles and for other purposes.*

WHEREAS by disposition and mortification dated 21st January 1859 the now deceased William Chambers of Glenormiston in the county of Peebles (hereinafter called "the Founder") after reciting the affection which he had always borne towards the Royal burgh of Peebles the place of his nativity and that he was desirous to found and establish an Institution therein for various useful purposes having in view the social moral and educational improvement of the community to be called the Chambers Institution gave granted disposed and mortified to and in favour of the then members of the town council of Peebles and their successors in office the members of the town council of the said burgh for the time being as trustees for the purposes therein mentioned certain property in the High Street of Peebles which had been converted by him into a reading-room and library dwelling-house gallery of art and museum and on part of the ground of which he had erected a large hall and also other property adjoining and the Founder provided and declared that the Institution "shall be devoted to  
" the social moral and intellectual improvement of the community  
" of the said burgh and county of Peebles in general and com-  
" prehends and shall be used as a public reading-room a public  
" library and gallery of art and museum of natural and other  
" objects for the instruction of the public and a great hall for  
" public meetings and exhibitions of various kinds also a dwelling-



“ house for a keeper and other accommodation for carrying out  
“ the purposes of the Institution ” and by his subsequent deed  
dated 5th August 1859 the directors were “ empowered to enlarge  
“ the Institution by the purchase of heritable property in the  
“ neighbourhood and to use such means from time to time  
“ hereafter as may appear necessary whether by an Act of  
“ Parliament or otherwise for obtaining an enlargement of their  
“ powers consistently always with the general plan of the  
“ Institution ” and the said subsequent deed takes the trustees  
bound to act in reference to the heritable property as required  
by the directors and provides that the directors shall also have  
through the trustees equal powers in regard to the heritable  
property as if the same were actually vested in themselves :      A.D. 1911.

And whereas the board of directors in whom by the said  
deed of mortification the management is vested consists of the  
provost of Peebles and the vice-lieutenant the convener the  
member of Parliament the sheriff substitute the sheriff clerk  
and the procurator fiscal all of the county of Peebles and of  
at least five directors connected with the town or neighbourhood  
who it was declared by the said deed of mortification must be  
members of or first-class annual subscribers to the Institution  
and the Founder also appointed himself to be a director for  
life and of the five original directors nominated by him to act  
along with the directors ex officiis and himself until directors  
came to be appointed by the subscribers two were resident  
outwith the burgh of Peebles :

And whereas the said deed of mortification further gave  
powers to the directors for the future government and manage-  
ment of the Institution the principal of which are as follows  
The appointment of a proper keeper who should reside within  
the buildings the enactment from time to time of such rules  
and byelaws as might “ appear advisable and expedient for  
“ regulating the admission to the reading-room and library the  
“ lending of the books admission to the gallery of art and  
“ museum and the use of the Great Hall and generally for  
“ regulating the affairs of the Institution so far as not incon-  
“ sistent with the deed of mortification ” and power was also  
given to the directors in order to afford “ a revenue for the  
“ maintenance of the Institution and defraying of all necessary  
“ charges on the property or connected with the Institution  
“ . . . to let such property and uplift the rents of the same



A.D. 1911. " as is disposed by me herein or may be hereafter disposed for  
" behoof of the said Institution " and also to levy a moderate  
subscription from persons desirous to become regular readers  
from the library and also from those desiring to be daily  
frequenters of the reading-room And it was also declared that  
the reading-room should be open every lawful evening free to  
the working classes and that a lower rate might be exacted  
from them than from other subscribers for the use of the library  
or of such portion as might be set aside for second-class readers :

And whereas by the said subsequent deed of 5th August  
1859 the last-mentioned provision was recalled and instead  
thereof it was declared that the directors should have power to  
levy a small charge from persons desirous to frequent the  
reading-room in the evening only and the directors were  
empowered to allow free admission under such regulations as  
they might think fit should circumstances in their opinion  
render that expedient And it was provided that the payment  
of the annual subscription for first-class readers should constitute  
every such subscriber a member of the Institution with power  
to vote at the annual meeting for the election of directors :

And whereas it was provided that admission to the gallery  
of art and museum should be given on payment of such small  
fee as might from time to time be determined " with power to  
" the Board to authorise free admission on fair days or such  
" other special occasions as they may think fit " and a suitable  
charge was also directed to be made for the use of the Great  
Hall with power to reduce the charge as might be thought fit :

And whereas the said deed of mortification declared that  
the library at its commencement should consist of ten thousand  
volumes provided by the Founder which were to be increased  
thereafter by donations or by purchases made from the revenue  
of the Institution And the directors were empowered to sell  
annually by public roup such of the books purchased as might  
be of an ephemeral character and apply the free proceeds in  
the purchase of new works And it was declared to be the  
Founder's particular desire that the library which should consist  
of two parts a reference or consulting library and a lending  
library (which again if found practicable and expedient should  
be divided into two sections one restricted to the use of first-  
class subscribers and the other for the use of second-class  
readers) should be maintained in proper vigour by the addition



from time to time of new and other books suitable for reference and for popular reading but it was stipulated that works of a generally useful and harmlessly entertaining character should be preferred and that works offensive to sound morals or which are calculated to bring either religion or the government of the country into contempt should be peremptorily excluded And this exception it was provided was not by a narrow interpretation to be held as applying to works of speculative philosophy: A.D. 1911.

And whereas the Founder directed that the gallery of art should contain casts from the antique and other objects of art and vertu which he should provide and should be open to donations from such persons as might be desirous to contribute to its stores and that the museum should contain various specimens of natural history mineralogy and such other subjects as might from time to time be purchased by the directors or presented by donors:

And whereas the lord lieutenant of the county and the sheriff of the county for the time being were appointed visitors of the Institution with power to examine into the management and details of the whole Institution at any time to call on the treasurer and secretary and other officers to furnish all books papers and documents for their inspection and to sue at their instance any person guilty of any abuse of his official power or of malversation of office in any way:

And whereas power was reserved by the Founder to add to and alter any of the conditions and also power to add to the Institution such property as he might acquire in order to extend the benefits of the Institution And the deed of mortification further contains clauses assigning to the directors books casts and other objects and furnishings and vesting the corporation as trustees in the heritable property:

And whereas by the said subsequent deed of 5th August 1859 the Founder made certain alterations and amendments on the provisions for the better management of the Institution which so far as bearing on this Order have been already referred to:

And whereas down to his death in 1883 the Founder took a very active interest in the management of the Institution and from time to time made further donations of books and other articles and also paid for repairs and improvements and by his liberality kept the Institution so long as he lived fully equipped



A.D. 1911.      And for the further endowment of the Institution the Founder by his trust disposition and settlement dated 17th June 1881 and registered in the books of council and session 26th May 1883 bequeathed to the provost and magistrates of the Royal burgh of Peebles and their successors in office in trust his heritable property in the burgh which consisted of (a) property on the north side of the High Street (sold in 1885 under authority of the Court of Session at the price of £202 10s.) and (b) and (c) subjects in Biggiesknowe Peebles :

And whereas in the year 1905 the directors of the Institution along with the provost magistrates and councillors of the Royal burgh of Peebles (hereinafter called "the corporation") and with consent of the visitors of the Institution and of Charles Edward Stuart Chambers publisher Edinburgh as representing the Chambers family in order to improve the efficiency of the Institution which had been impaired by decrease in subscribers and shrinkage of income and more effectually to carry out the purpose and intention of the Founder applied to the Court of Session for power to borrow on the security of the Institution property and the said properties in Biggiesknowe Peebles a sum not exceeding £2,300 to be expended as follows (a) to purchase books for the library (b) to provide a heating system and cloak-room retiring-room and lavatory accommodation and other requirements for the Great Hall (c) to provide a public news-room and (d) to provide additional revenue for the Institution by leasing to the corporation for municipal offices for the use of the corporation portions of the premises to be altered therefor which were not required for the purposes of the Institution :

And whereas the requisite authority to borrow was granted by the said court and the directors carried through the alterations and the corporation thereupon became tenants on a thirty years' lease from Whitsunday 1905 at an annual rent of £250 of the following portions of the premises (a) the Great Hall and retiring-rooms lavatories &c. (b) the whole ground floor of the buildings on the west side of the quadrangle between the said Great Hall and the main staircase in the north-western tower to be used as council chambers court room and witness rooms (c) the vault under the said tower used as record room (d) the portion entering from the High Street of the ground floor of the north-eastern block used as offices for burgh officials and (e) the quadrangle subject to access for the directors and their officers to the remaining portions of the premises not thereby



let and subject to reasonable access for subscribers and others to the library reading-room art gallery and museum billiard room and newspaper room and in addition to the rent the corporation agreed to bear the whole expense of upkeep and repair of the premises let to them and also of the roof of the art gallery and museum and to pay both landlord's and tenant's taxes and the premium of fire insurance effecting to the premises let and to be responsible for the lighting cleaning &c. of the quadrangle: A.D. 1911.

And whereas the foresaid transactions though resulting in an increased revenue have not had the effect of popularising the Institution to the extent anticipated:

And whereas it is desirable further to extend the premises of the Institution to provide a larger gallery of art and museum and more adequate accommodation for books as well as to obtain for the Institution and the inhabitants of the burgh and county of Peebles in connection therewith the benefits of the Public Libraries Consolidation (Scotland) Act 1887:

And whereas Andrew Carnegie Esquire LL.D. of Skibo Castle in the county of Sutherland has offered to the corporation through the Right Honourable Alexander Oliphant Murray the Master of Elibank Juniper Bank Walkerburn in the county of Peebles to provide a sum of £10,000 to be used in extending the premises of the Institution as aforesaid and in defraying the expenses of and incidental to this Order on condition that the corporation adopt the said Public Libraries Consolidation (Scotland) Act 1887 and that the administration and management of the Institution and the endowments thereof be transferred from the directors to the corporation and the committee to be appointed on the adoption of the said Act (hereinafter called "the committee"):

And whereas the corporation have agreed with the approval of the directors and visitors to accept the said offer provided they obtain the necessary powers:

And whereas it would be of public and local advantage and for the benefit of the householders and inhabitants of the Royal burgh of Peebles and the residents in the county of Peebles outwith the said burgh that the corporation and the committee should be enabled to accept the said offer made by the said Andrew Carnegie and to carry through the various arrangements and transactions consequent thereupon:



[Ch. cxxiii.] *Chambers Institution Peebles* [1 & 2 GEO. 5.]  
*Order Confirmation Act, 1911.*

A.D. 1911. And whereas the corporation at a special meeting held on 12th December 1910 in accordance with the provisions of the Public Libraries (Scotland) Act 1894 unanimously resolved to adopt the Public Libraries Consolidation (Scotland) Act 1887 as at and from the date of the confirmation of this Order:

And whereas it is accordingly expedient to make provision for the transfer of the administration and management of the Institution and the endowments thereof to the corporation and the committee to provide for the appointment of members of the committee to be chosen from among the householders in the county of Peebles outwith the said burgh to authorise the committee to continue the privileges of the Institution to persons resident outwith the burgh but within the county of Peebles to extend the present Institution to enable the committee to cancel the existing lease and to enter into new leases with the corporation of portions of the Institution premises for municipal offices and other accommodation and to enable the committee to administer and manage and to let and charge for the Great Hall—all as hereinafter more particularly provided for:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

Short title.

1. This Order may be cited as the Chambers Institution Peebles Order 1911.

Commence-  
ment of  
Order.

2. This Order shall except as otherwise in this Order provided commence and have effect on and from the date of the passing of the Act confirming the same which date is hereinafter referred to as “the commencement of this Order.”

Interpreta-  
tion.

3. In this Order unless there be something in the subject or context repugnant to such construction “the burgh” means the Royal burgh of Peebles “the corporation” means the provost magistrates and councillors of the burgh “the committee” means the committee to be appointed by the corporation on the adoption in the burgh of the Public Libraries Consolidation (Scotland) Act 1887 in terms of the said Act as modified by this Order and “the Founder” means the now deceased William Chambers of Glenormiston in the county of Peebles.



4. The corporation shall be and are hereby authorised at the commencement of this Order to take over from themselves as trustees of the Chambers Institution (hereinafter called "the Institution") and from the directors thereof and the visitors thereof the administration and management of the Institution and the endowments thereof to be administered and managed by the corporation and the committee under the provisions of the Public Libraries Consolidation (Scotland) Act 1887 and this Order to complete the title of the corporation to the lands and buildings presently held by them as trustees for the Institution and to take delivery of all books and documents and articles and possession of all sums of money in the hands of the directors or their secretary and treasurer. The corporation shall be liable for all debts due and shall implement all contracts or obligations undertaken by the directors existing undischarged at the commencement of this Order and shall be authorised to collect all moneys due to the directors at the said date. The directors shall be sufficiently exonerated and discharged of their whole actings and intromissions in regard to the Institution by receiving from the corporation a letter of discharge signed by the provost and the town clerk.

A.D. 1911.  
 ———  
 Transfer of  
 Chambers  
 Institution.

5. The Institution shall from the commencement of this Order be administered by the committee. The provisions contained in the said disposition and mortification by the founder and in the said subsequent deed by the founder shall be observed by the committee except in so far as contrary to or inconsistent with the provisions of the Public Libraries Consolidation (Scotland) Act 1887 and this Order and subject to the following modifications:—

Management  
 by library  
 committee.

- (1) It shall no longer be necessary that the keeper and librarian of the Institution reside on the premises:
- (2) The present division of the library into two classes shall be discontinued.

6. Notwithstanding anything to the contrary contained in the Public Libraries Consolidation (Scotland) Act 1887 the committee are hereby empowered to continue the privileges of the Institution to householders and inhabitants outwith the burgh but within the county of Peebles on the same terms and conditions as if they were householders or inhabitants within the burgh. The corporation shall choose as members

Privileges of  
 Institution  
 continued to  
 residents in  
 county and  
 constitution  
 of library  
 committee.



[Ch. cxxiii.]      *Chambers Institution Peebles*      [1 & 2 GEO. 5.]  
*Order Confirmation Act, 1911.*

A.D. 1911. of the committee two members from among the householders in the county of Peebles outwith the burgh and the number of householders of the burgh other than the magistrates and council to be chosen by the corporation shall always be reduced by two accordingly.

Power to  
cancel lease.

7. The committee may cancel the foresaid lease now current between the directors and the corporation of certain portions of the Institution buildings used for municipal purposes. The committee are hereby empowered to enter into a new contract of lease and from time to time to cancel alter or renew the same with or without modification with the corporation upon such terms and conditions as to the committee may seem just of portions of the Institution premises not required for the purposes of the Institution to be used by the corporation for municipal purposes only.

Management  
of Great  
Hall.

8. The committee shall be and are hereby authorised in addition to the powers hereinbefore conferred and notwithstanding the provisions of section 32 of the Public Libraries Consolidation (Scotland) Act 1887 and that either directly or indirectly under agreement with any person or persons or association or committee or other body of persons to administer and manage and to let and charge for the use of the Great Hall of the Institution for public meetings and exhibitions of various kinds lectures concerts dramatic performances and other entertainments or amusements having in view the social moral and educational improvement of the community of Peebles. It shall be lawful for the committee to make byelaws for regulating the control management protection and use of the Great Hall and the provisions of sections 22 to 28 inclusive of the Public Libraries Consolidation (Scotland) Act 1887 shall extend thereto.

Costs of  
Order.

9. All costs charges and expenses of and incidental to the preparing for obtaining and confirming this Order or otherwise in relation thereto may be paid by the corporation out of the foresaid sum of £10,000 to be received from the said Andrew Carnegie.

---

Printed by EYRE and SPOTTISWOODE, Ltd.,

FOR

ROWLAND BAILEY, Esq., C.B., M.V.O., the King's Printer of Acts of Parliament.

---

And to be purchased, either directly or through any Bookseller, from  
WYMAN AND SONS, Ltd., FETTER LANE, E.C.; or  
OLIVER AND BOYD, TWEEDDALE COURT, EDINBURGH; or  
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN.